

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1448

By: Crosswhite Hader

AS INTRODUCED

An Act relating to elections; mandating disclaimer on campaign or election material; providing minimum font size; providing language of disclaimer; clarifying campaign or election material; creating a fine per unique mailer; directing the Oklahoma Ethics Commission to enforce this section; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 16-200 of Title 26, unless there is created a duplication in numbering, reads as follows:

A. Any campaign or election material that is not an official government document from a county election board, the State Election Board, or a subdivision of this state sent via mail to voters shall include a disclaimer. The disclaimer shall clarify, in a minimum of size fourteen (14) font, the following:

"This piece of mail is not an official government document from the State of Oklahoma or any subdivision of this state."

1 For purposes of this section, campaign or election material
2 includes mail encouraging voters to apply for an absentee ballot or
3 reminding them of election dates.

4 B. Any person or organization that does not include the
5 disclaimer described in subsection A of this section shall be
6 subject to a one-hundred-dollar fine per mailer campaign, meaning a
7 unique mailer sent to multiple addresses. "Per mailer campaign"
8 shall not mean individual pieces of mail sent. On the third offense
9 of failing to include the disclaimer described in subsection A of
10 this section, the fine shall increase to a three-hundred-dollar fine
11 per mailer campaign.

12 C. The Oklahoma Ethics Commission shall enforce this section
13 and be granted rule-making authority to carry out its provisions.

14 SECTION 2. This act shall become effective November 1, 2025.

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